

CHICAGO'S PIZZA HOLD CO., LLC'S counsel to be Relieved as Counsel of Record. This motion is **Granted**.

CHICAGO'S PIZZA HOLD CO., LLC MUST TAKE NOTICE THAT AN LLC CANNOT REPRESENT ITSELF IN COURT, AND MAY APPEAR ONLY THROUGH AN ATTORNEY.

The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) with the change that the next Court date is September 8, 2026 at 8:30 am for Case Management Conference. The withdrawal is effective upon **KATHELEEN E. FINNERTY** filing the proof of service of signed order on the client and all parties.

7. 9:00 AM CASE NUMBER: C24-02540
CASE NAME: MONICA JOHNSON-BLAIR VS. BENJAMIN GREER, MD
HEARING ON DEMURRER TO: RE 3RD AMENDED COMPLAINT
FILED BY: EQUITY HR, INC.
TENTATIVE RULING:

Defendant Equity HR's demurrer to the operative Third Amended Complaint filed January 22, 2026 is **overruled**. Defendant has ten days from the notice of entry of order to file their answer.

In the Third Amended Complaint filed January 22, 2026 (see notice of errata), Plaintiff is suing for (1) constructive tortious discharge in violation of public policy, (2) gender discrimination, (3) harassment based on gender, (4) failure to prevent discrimination and harassment, (5) violation of Labor Code section 1102.5, (6) violation of Labor Code section 6310-6311, (7) assault, (8) intentional infliction of emotional distress and (9) unfair business practices. Plaintiff alleged that her boss, Dr. Greer, engaged in unlawful harassment and discrimination. Plaintiff has sued Equity HR under a joint employer theory.

Defendant demurs to every cause of action based upon the failure to allege sufficient facts to state a cause of action, Code of Civil Procedure section 430.10(e).

Causes of Action 1 to 6 (Joint Employer Issue)

As to the standard employment claims, Defendant argues that they should not be considered an employer in this case because they are alleged to be one of three joint employers and there are no facts supporting Defendant Equity as an employer.

“California law specifies the elements necessary to define an employer. ‘To employ’ has ‘three alternative definitions.’ (*Martinez v. Combs* (2010) 49 Cal.4th 35, 64.) ‘It means: (a) to exercise control over the wages, hours or working conditions, or (b) to suffer or permit to work, or (c) to engage, thereby creating a common law employment relationship.’ (*Ibid.*) [] The broad definition of an employer includes “‘any person ... who directly or indirectly, or through an agent or any other person, employs or exercises control over the wages, hours, or working conditions of [an employee].’” [Citation.]” (*Castaneda v. Ensign Group, Inc.* (2014) 229 Cal.App.4th 1015, 1019.)

“ ‘There is no magic formula for determining whether an organization is a joint employer. Rather, the court must analyze “myriad facts surrounding the employment relationship in question.” [Citation.] No one factor is decisive. [Citation.]’ [Citation.]” (*Vernon v. State of California* (2004) 116 Cal.App.4th 114, 124-125.)

Defendant points out that “a payroll company, or any other person or entity that processes payroll, is not an employer because he, she, or it, does not control the hiring, firing, and day-to-day supervision of workers supplying the labor.” (*Futrell v. Payday California, Inc.* (2010) 190 Cal.App.4th 1419, 1433.) In reply, Defendant cites to *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817. But in *Goonewardene*, as in *Futrell*, the defendant was alleged to provide payroll services. (*Id.* at 822.)

Defendant also cites a California district court case, where a payroll processing company was dismissed. (*Valencia v. North Star Gas Ltd. Co.* (2018) 291 F.Supp.3d 1155.) *Valencia* is not binding on this Court and in any event, *Valencia* is another case involving a payroll processing company. The allegations that the company went beyond payroll were found to be too conclusory. The facts alleged here go beyond Defendant acting as a payroll company and include allegations that Defendant provided additional employment services.

In the TAC, Plaintiff alleges that Equity HR provides comprehensive human resources and employment services to its clients and that Equity HR assumed

comprehensive employer functions with respect to covered employees, including Plaintiff. (TAC ¶4 and ¶5.) Plaintiff alleges that Equity HR and Healthmet divided control over the employment relationship as follows: Healthmet directed day-to-day work while EQUITY HR controlled wages, benefits, HR policies, and employment practices. (TAC ¶8.)

Under the HR Services Agreement, Equity HR processes payroll, including withholding taxes; provides workers' compensation insurance and administered claims; provides employee benefits under the Equity-HR sponsored benefit plans; provides human resource consulting services, including guidance on employee discipline and performance reviews, reasonable accommodations and FMLA/CFRA leave; maintains liability insurance for employees. (TAC ¶6.) Under the HR Services Agreement, Equity HR reserved the right of direction and control over Covered Employees and retained the right to hire, discipline, and terminate Covered Employees. (TAC ¶7.)

Defendant points to a 2022 Client Services Agreement and claims that it states that "Client agrees that Execustaff HR is not a joint employer for purposes of liability pursuant to the California Wage Orders, Labor Code, and Government Code." (Quint dec. 11 and ex. 5 (See Addendum ex E at 4(i)).) Defendant has not shown that this document is the same one referred to in the contract, nor has Defendant requested judicial notice of this document. Finally, Defendant has not cited any case law that holds a contract clause such as this one can override other facts showing a joint employer.

Here, Plaintiff has alleged that Defendant Equity HR's functions went beyond those of a payroll processing company. Plaintiff alleges that Defendant provides employee benefits and administers the worker's compensation plan; that Defendant provides guidance on employee discipline, reasonable accommodations and FMLA/CFRA leave; and that Defendant retained the right to hire, discipline, and terminate employees. Given these facts, the Court finds that Plaintiff has alleged facts showing that Equity is a joint employer. Therefore, the demurrer to causes of action one through six is overruled.

Cause of Action 7 (Assault)

For an assault claim, plaintiff must show that (1) the defendant acted with the intent to cause harmful or offensive contact, or threatened to touch Plaintiff in a harmful or offensive manner; (2) Plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to Plaintiff that the defendant was about to carry out the threat; (3) Plaintiff did not consent to defendant's conduct; (4) Plaintiff was harmed; and (5) the defendant's conduct was a substantial factor in causing Plaintiff's harm. (*So v. Shin* (2013) 212 Cal.App.4th 652, 668-669.)

Defendant argues that there are no facts showing intent to cause harm or that Plaintiff reasonably believed she was about to be touched or harmed.

In the previous demurrer, the Court agreed with Defendant that there was no showing that Equity was involved in the alleged assault. Plaintiff now alleges that Equity is liable for the assault as a joint employer and pursuant to the doctrine of respondeat superior as Greer's conduct occurred within the course and scope of his employment with Defendant Employer. (TAC ¶153.) Plaintiff also alleges that Greer is the managing agent, officer and/or supervisor of the Defendant Employer and Defendant Employer is defined to include both Equity HR and Healthmet. (FAC ¶¶ 9. 14.)

Plaintiff alleges that Defendant is liable for Greer's actions because the assault occurred within the course and scope of employment, including several incidents that occurred at the office while Plaintiff was working. (TAC ¶152.) Further, Plaintiff sufficiently alleges that she reasonably believed she was about to be touched in a harmful or offensive manner by Greer, including Greer grabbing the phone out of Plaintiff's hands, standing 8 or 9 inches from Plaintiff's face, lunging toward Plaintiff and throwing objects at Plaintiff. (TAC ¶152.) Based upon the arguments raised in the moving papers, Defendant's demurrer is overruled.

Defendant did not cite any authority regarding respondeat superior liability involving assaults in the moving papers. In reply, Defendant relies on *Fretland v. County of Humboldt* (1999) 69 Cal.App.4th 1478 for the proposition that "the doctrine of respondeat superior cannot be used to extend the Labor Code section 3602(b)(1) assault exception to an employer for another party's assault." (*Id.* at 1486.) Labor Code section 3602 is part of the workers' compensation statutory scheme. Defendant

cannot wait until reply to raise new issues that could have been raised in the moving papers. Defendant may raise this argument in a future motion, but the Court will not rule on it now.

Cause of Action 8 (IIED)

As to the intentional infliction of emotional distress claim (cause of action eight), Defendant argues that the facts alleged are insufficient to state an IIED claim and that there are no facts as to Equity.

“ ‘The elements of the tort of intentional infliction of emotional distress [IIED] are: “ ‘(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. ...’ Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” ’ [Citation.] ‘Liability for intentional infliction of emotional distress “ ‘does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.’ ” ’ [Citation.]” (*Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 101-102.)

The Court finds, as it did in its previous ruling, that the facts alleged are sufficient to show extreme and outrageous conduct.

The remaining question is whether the facts alleged show how Equity could be liable for Greer’s conduct. Defendant’s argument focuses on whether it was directly responsible for IIED. Plaintiff alleged that Defendant is liable under the respondeat superior doctrine (TAC ¶158) and Defendant did not address that theory until reply. Defendant may raise this argument in a future motion, but the Court will not rule on it now.

The demurrer to cause of action eight is overruled.

Cause of Action 9 (Unfair Competition)

Defendant argues that the unfair competition claim (cause of action nine) fails because the other claims fail. Since the Court finds that Plaintiff has alleged other claims against Defendant, the demurrer to this claim is overruled.

Reply

For the first time in reply, Defendant argues that all causes of action fail because there are no allegations that Defendant was on notice as to Plaintiff's complaints or Greer's alleged conduct. This issue should have been raised in the moving papers and the Court will not consider it now.

Judicial Notice

Plaintiff's requests for judicial notice are granted.

8. 9:00 AM CASE NUMBER: C25-00220
CASE NAME: FRANCIS FANELLI VS. MICHAEL BENJAMIN
*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: FANELLI, FRANCIS
TENTATIVE RULING:

Before the Court is a motion by plaintiff Francis Fanelli for leave to file a first amended complaint. For the reasons set forth, the motion is **granted**. Plaintiff shall file and serve his first amended complaint by **no later than July 24, 2026**.

Background

Plaintiff Francis Fanelli filed his complaint initiating this action on January 25, 2025. His original complaint alleges that on March 19, 2024, defendants' 14-year old son was walking their 80 pound German Shepherd. He alleges that the dog has a history of aggression and attacks on neighbors, that the son lost control of the dog which was no longer restrained by a leash, and that the dog attacked, knocked down, and bit Plaintiff and Plaintiff's small dog, injuring both of them. (Compl. ¶¶ 7-10.) The original complaint alleges three causes of action against defendants Michael Benjamin and Qing Jin, the alleged owners of the dog and parents of the 14-year old, including negligence, vicarious liability as the parents of the minor, and strict liability for violation of the Contra Costa County leash law.

Plaintiff filed his motion for leave to file a first amended complaint on March 9, 2026. Plaintiff's proposed first amended complaint (Kraft Decl. Exh. 1) adds a claim for punitive damages. On June 25, 2026, the Court held a case management conference